Precedent memo: Quarry Point Clinic v. Nakamura

Deschutes County Circuit Court, decided 2024-08-05 - memo by the employment group

1. Holding

A non-solicitation clause was enforced even though the non-compete in the same agreement failed; the court severed the two.

2. Facts

Nakamura, a physical therapist, emailed 40 former patients in her first week at the new clinic.

3. Firm position

We represented Quarry Point. Plead non-solicitation separately from the non-compete.

4. Practice notes

Keep the dated documents from the first client call. The dates usually decide these cases.